

STATE OF NEW YORK

10534--A

IN ASSEMBLY

March 6, 2026

Introduced by M. of A. BURDICK -- read once and referred to the Committee on Energy -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to establishing a standardized rate application template

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings and intent. The legislature finds that
2 rate increase applications filed by gas and electric utilities before
3 the New York state public service commission vary widely in format, and
4 explanatory detail. This lack of uniformity impedes meaningful review
5 by regulators, intervenors, and the public, and makes comparison across
6 rate cases difficult.

7 The legislature therefore declares that it is in the public interest
8 to require standardized, transparent, and clearly explained rate
9 increase filings in order to promote accountability, comparability, and
10 informed decision making.

11 § 2. The public service law is amended by adding a new section 27-a to
12 read as follows:

13 § 27-a. Standardized utility rate case filings. 1. Definitions. For
14 the purposes of this section, the following terms shall have the follow-
15 ing meanings:

16 (a) "Rate filing" means any petition, filing, or submission seeking
17 approval of a major change in rates and charges as defined in subdivi-
18 sion twelve of section sixty-six of this chapter.

19 (b) "Utility" means any electric, gas, or steam corporation subject to
20 rate regulation pursuant to this chapter.

21 2. Standardized rate application template. (a) The commission shall,
22 by rule establish a standardized rate application template to be used by
23 all utilities making a rate filing.

24 (b) The standardized template shall require uniform presentation of
25 information, including, but not limited to:

26 (i) an executive summary of the proposed rate increase and total
27 revenue request;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD15085-04-6

1 (ii) the projected bill impacts by customer class;
2 (iii) a detailed breakdown of operating expenses, capital expendi-
3 tures, and rate base components;
4 (iv) historical and forecasted test year data presented in a consist-
5 ent format;
6 (v) a side-by-side comparison of current rates and proposed rates; and
7 (vi) any additional schedules or exhibits the commission deems neces-
8 sary for complete review.

9 (c) All rate filings shall be submitted using the standardized
10 template, except those initiated pursuant to section seventy-one or
11 seventy-two of this chapter.

12 3. Explanation of calculations and assumptions. (a) Each rate filing
13 made by a utility shall include a clear and comprehensive explanation of
14 all calculations used for key elements of the rate filing including but
15 not limited to:

16 (i) revenue requirement calculations;
17 (ii) cost of capital calculations;
18 (iii) depreciation, amortization, and plant-in-service calculations;
19 (iv) allocation of costs among customer classes; and
20 (v) forecasting assumptions used in test year analyses.
21 (b) Comprehensive explanations shall include:
22 (i) identification of all formulas and mathematical methodologies
23 employed;
24 (ii) the source of all data inputs;
25 (iii) all material assumptions underlying forecasts and projections;
26 and
27 (iv) an explanation of any changes from methodologies or assumptions
28 used in the utility's prior rate case.

29 (c) Supporting schedules and workpapers shall be provided in a format,
30 prescribed by the commission, that allows department staff, intervenors,
31 and the public to replicate and verify the calculations.

32 4. Completeness review and enforcement. (a) The commission may deter-
33 mine that a rate filing is incomplete if it fails to comply with the
34 standardized template or methodology requirements established pursuant
35 to this section.

36 (b) The commission may reject, suspend, or require amendment of any
37 noncompliant filing until such deficiencies are cured.

38 5. Public availability. All rate filings, including explanatory mate-
39 rials and calculation workpapers, shall be made publicly available on
40 the department's website, subject to provisions governing confidential
41 or proprietary information.

42 6. Rulemaking authority. The commission is authorized to promulgate
43 rules and issue orders necessary to implement and enforce the provisions
44 of this section.

45 § 3. This act shall take effect one year after it shall have become a
46 law and shall apply to all rate applications filed on or after such
47 date.